

Opinion of the Court

rule announced by the Ninth Circuit does not aid this objective because its operation is unpredictable in advance of the district court's adjudication. Nor does the rule further the interests on the other side of the balance: deterring public officials' unlawful actions and compensating victims of such conduct. Instead, it simply releases defendants because of shortages in counsel's or the court's legal research or briefing.³

In thinking its rule compelled by this Court's instruction, the Ninth Circuit misconstrued *Davis v. Scherer*. The Court held in *Davis* that an official's clear violation of a state administrative regulation does not allow a § 1983 plaintiff to overcome the official's qualified immunity. Only in this context is the Court's statement comprehensible: "A plaintiff who seeks damages for violation of constitutional or statutory rights may overcome the defendant official's qualified immunity only by showing that *those* rights were clearly established" *Davis v. Scherer*, 468 U. S., at 197 (emphasis added). *Davis*, in short, concerned not the authorities a court may consider in determining qualified immunity, but this entirely discrete question: Is qualified immunity defeated where a defendant violates *any* clearly established duty, including one under state law, or must the clearly established right be the federal right on which the claim for relief is based? The Court held the latter. *Id.*, at 193–196, and n. 14; see 984 F. 2d 991, 995 (CA9 1993) (Kozinski, J., dissenting from denial of reh'g en banc).

³The Ninth Circuit's rule could have a number of untoward effects. It could occasion appellate affirmation of incorrect legal results, see 984 F. 2d 991, 998–999 (CA9 1993) (Kozinski, J., dissenting from denial of reh'g en banc), and it could place defense counsel in a trying situation. See ABA Model Rule of Professional Conduct 3.3(a) (1989 ed.) ("A lawyer shall not knowingly: . . . (3) fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be directly adverse to the position of the client and not disclosed by opposing counsel.").

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Whether an asserted federal right was clearly established at a particular time, so that a public official who allegedly violated the right has no qualified immunity from suit, presents a question of law, not one of “legal facts.” See *Mitchell v. Forsyth*, 472 U. S. 511, 528 (1985); *Harlow v. Fitzgerald*, 457 U. S., at 818. That question of law, like the generality of such questions, must be resolved *de novo* on appeal. See, e. g., *Pierce v. Underwood*, 487 U. S. 552, 558 (1988). A court engaging in review of a qualified immunity judgment should therefore use its “full knowledge of its own [and other relevant] precedents.” See *Davis*, 468 U. S., at 192, n. 9.

We leave it to the Court of Appeals to consider, in light of all relevant authority, including *Al-Azzawy*, whether the respondent officers are entitled to prevail on their qualified immunity defense. We express no opinion on that ultimate issue, nor do we consider whether the officers’ alternate plea of exigent circumstances is tenable.

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For the reasons stated, the judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

Syllabus

FOGERTY *v.* FANTASY, INC.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 92-1750. Argued December 8, 1993—Decided March 1, 1994

After petitioner Fogerty's successful defense of a copyright infringement action filed against him by respondent Fantasy, Inc., the District Court denied his motion for attorney's fees pursuant to 17 U. S. C. § 505, which provides in relevant part that in such an action "the court may . . . award a reasonable attorney's fee to the prevailing party as part of the costs." The Court of Appeals affirmed, declining to abandon its "dual" standard for awarding § 505 fees—under which prevailing plaintiffs are generally awarded attorney's fees as a matter of course, while defendants must show that the original suit was frivolous or brought in bad faith—in favor of the so-called "evenhanded" approach, in which no distinction is made between prevailing plaintiffs and prevailing defendants.

Held: Prevailing plaintiffs and prevailing defendants must be treated alike under § 505; attorney's fees are to be awarded to prevailing parties only as a matter of the court's discretion. Pp. 522-535.

(a) Fantasy's arguments in favor of a dual standard are rejected. Section 505's language gives no hint that successful plaintiffs are to be treated differently than successful defendants. Nor does this Court's decision in *Christiansburg Garment Co. v. EEOC*, 434 U. S. 412, which construed virtually identical language from Title VII of the Civil Rights Act of 1964, support different treatment. The normal indication that fee-shifting statutes with similar language should be interpreted alike is overborne by factors relied upon in *Christiansburg* and the Civil Rights Act which are noticeably absent in the context of the Copyright Act. The legislative history of § 505 provides no support for different treatment. In addition, the two Acts' goals and objectives are not completely similar. The Civil Rights Act provides incentives for the bringing of meritorious lawsuits by impecunious "private attorney general" plaintiffs who can ill afford to litigate their claims against defendants with more resources. However, the Copyright Act's primary objective is to encourage the production of original literary, artistic, and musical expression for the public good; and plaintiffs, as well as defendants, can run the gamut from corporate behemoths to starving artists. Fantasy's argument that the dual approach to § 505 best serves the Copyright Act's policy of encouraging litigation of meritorious infringement claims expresses a one-sided view of the Copyright Act's purposes. Because copyright law ultimately serves the purpose of enriching the general